

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2141
(Senators Patten, Erbele, Kessel)
(Representatives Dressler, Hagert, Novak)

AN ACT to amend and reenact section 61-04-15.4 of the North Dakota Century Code, relating to a change in the purpose of use of a conditional or perfected water permit.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 61-04-15.4 of the North Dakota Century Code is amended and reenacted as follows:

61-04-15.4. Change in purpose of use.

1. A permitholder may change the purpose of use of a conditional or perfected water permit without affecting the priority date, if approved by the department of water resources.
~~Applications for a~~
2. An application to change in the purpose of use must be processed and evaluated in the same manner as a conditional water permit application. A
3. The department of water resources may approve the proposed change if the proposed change will not adversely affect the rights of other appropriators and if a change in the purpose of use may be authorized only for is:
 - a. To a superior use as determined by under the order of priority in section 61-04-06.1. The department may approve the proposed change if the proposed change will not adversely affect the rights of other appropriators; or
 - b. To livestock use or fish, wildlife, and recreation use for a reservoir authorizing no withdrawal of water.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2141.

Senate Vote: Yeas 41 Nays 6 Absent 0

House Vote: Yeas 91 Nays 1 Absent 2

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State